

JULY 12, 2023

1:30 P.M.

22CF13859	BANK OF AMERICA, N.A. v. KEVIN W MURAWSKI	Two attempts were made to serve the Complaint. Proof of Service in those matters were not filed in this the defendant was not served as he was named on the complaint. OSC is set for 10/4/2023 at 1:30 pm in Dept 4 re: dismissal pursuant to California Rules of Court. Rule 3.740(d) requiring the Complaint to be served on all named defendants within 180 days after filing the Complaint proof of service must be filed with the court; and/or Rule 3.740(f) further requiring the default judgment must be filed with the court within 360 days after filing the Complaint. Court to provide notice of OSC re: Dismissal
21CV45488	STATE FARM GENERAL INSURANCE COMPANY v. BIG BATTERY INC.; THIS & THAT DISCOUNT STORE, INC.,	Upon review of file, it appears that parties are in discovery and are agreeable to mediation. The next Case Management Conference is set for November 15, 2023 at 1:30 pm in Dept. 4 where parties may be ordered to mediation, if not already undertaken.
21CV45518	THE PEOPLE OF THE STATE OF CALIFORNIA v. RALPH LEE MCGAUGHRAN	Upon review of file, it appears the parties entered into a stipulation and the court entered an Order of Judgment on June 6, 2023. The Petitioner will file a Dismissal by time of next CMC and OSC re: Dismissal also for August 2, 2023 at 1:30 pm in Dept 4. Court to provide notice.
22CV46375	CHAD BARBER v. JOHN FERNANDES	Upon review of file, it appears that Defendants JOHN FERNANDES and TRACY FERNANDES acknowledged receipt of Complaint, but no date for the acknowledgment of service for John and Tracy Fernandez. The next Case Management Conference is set for October 25, 2023 at 1:30 pm in Dept. 4
22CV46406	WOOD v. OSTERMILLER	Upon review of file, it appears that Plaintiff is continuing to have difficulties in serving Defendants. The next Case Management Conference is set for November 15, 2023 at 1:30 pm in Dept. 4.
21CV45481	CRISTY GIVENS v. LLOYD HOFFMAN	Upon review of file, it appears that parties are in discovery and are agreeable to mediation. The next Case Management Conference is set for November 15, 2023 at 1:30 pm in Dept. 4 where parties will be ordered to mediation, if not already undertaken.

20CV44668	MOSELLE v SADEGI	Upon a review of file, it appears that CMC statements are being re-filed. Has Discovery been initiated? Before setting trial date in this matter, the Court wants to know status of discovery and mediation. The next Case Management Conference is set for November 15, 2023 at 1:30 pm in Dept. 4
21CV45225	REECE v. SANAD	To date, an Answer has not been filed. By the next CMC, Plaintiff is to file a dismissal or a default. The next CMC will be set for October 25, 2023 at 1:30 pm in Dept. 4. Plaintiff is to file a CMC statement prior to the next CMC to advise the court as to the status of this matter or steps taken to get Answer to Complaint or Default. Court to serve notice on Plaintiff.
21CV45514	FAGUNDES v. FAGUNDES	Upon a review of file, it appears that the parties were negotiating a settlement as of March 8, 2023. The next CMC will be set for October 25, 2023 at 1:30 pm in Dept. 4. Court to notify both parties of next CMC, and request statements.
22CV46382	CALIFORNIA FAIR PLAN ASSOCIATION v. DOES 1-20, INCLUSIVE	Upon a review of file, it appears that a Default was entered as to some parties, but no prove up hearing has been set. Also, CMC statement contemplates discovery and trial setting but is silent as for service for the additional "Doe" substitution or status of action. The next Case Management Conference is set for November 15, 2023 at 1:30 pm in Dept. 4.
22CV46384	KIRK v. MARK TWAIN MEDICAL CENTER	Upon review of file, it appears that parties are in discovery and are agreeable to mediation. The next Case Management Conference is set for November 15, 2023 at 1:30 pm in Dept. 4 where parties may be ordered to mediation, if not already undertaken.
22CV46405	CALIFORNIA FAIR PLAN ASSOCIATION v. FYOCK, et al	Upon review of the CMC statement, the next CMC is set for October 11, 2023 at 1:30 pm in Dept. 4. Plaintiff to properly name and serve defendants so that names and capacities match and then resubmit Requests for Entry of Default.
19CV44151	FIRE INSURANCE EXCHANGE, ET AL. V. RONALD GLEN PARKER, et al.	Upon a review of file, this case settled following mediation on June 2, 2023. Parties to finalize settlement and dismiss complaint and cross-complaints as necessary. OSC Re Dismissal will be set for October 25, 2023 at 1:30 pm in Dept. 4. Court to send notice.